

		Thus, the proposed cross-claims are related to the claims asserted by the Plaintiff the Complaint for damages and the Cross Complaint is compulsory. Defendant's Counsel represents that Defendant filed the Cross Complaint simultaneously with its answer on January 22, 2026, but the filing was rejected due to technical formatting defects. (See <i>ibid.</i>) Defendant then attempted to refile the Cross Complaint on January 28, 2026, but it was rejected as untimely. (See <i>ibid.</i>) The record reflects that Defendant acted in good faith and did not unreasonably delay in filing this motion seeking leave to file the Cross Complaint, about a week after the last rejection. (See ROA #27.) Further, Plaintiff and proposed Cross-Defendant AP Parpro, Inc. has not filed an opposition or responded to the motion, and has thus waived any arguments against the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Accordingly, the court will grant the motion for leave to file cross-complaint. Defendant shall give notice of this ruling.
6	Kittell vs. DoorDash, Inc. 30-2026-01537684	<u>Motion for Leave to Amend</u> Plaintiff James Stephen Kittell II's Motion for Leave to File Second Amended Complaint is taken OFF CALENDAR pursuant to the Request for Dismissal of the entire action of all parties and all causes of action filed May 8, 2026 (ROA #35).
7	Biotronik, Inc. vs. Letarte 30-2024-01436213	<u>Motion for Leave to Amend</u> Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint is GRANTED. Plaintiff Biotronik, Inc. is ORDERED to file and serve upon all named Defendants, within 30 days of this ruling, the First Amended Complaint attached as Exhibit 1 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint.